# Maritime Labour Convention, 2006

## Declaration of Maritime Labour Compliance – Part I

*(Note: This Declaration must be attached to the ship's Maritime Labour Certificate)*
**Issued under the authority of the Benin Maritime Administration.**

With respect to the provisions of the Maritime Labour Convention, *2006* the following referenced ship:

***General Particulars / Détails généraux***

| | Name of Ship<br>*Nom du navire* | IMO No.<br>*OMI No* | Gross Tonnage<br>*Tonnage brut* |
|---|---|---|---|
| | HORNET | 9197844 | 149282 |

is maintained in accordance with Standard A5.1.3 of the Convention.

The undersigned declares, on behalf of **Benin Maritime Administration,** that:

(a) the provisions of the Maritime Labour Convention are fully embodied in the national requirements referred to below;
(b) these national requirements are contained in the national provisions referenced below; explanations concerning the content of those provisions are provided where necessary;
(c) the details of any substantial equivalencies under Article VI, paragraphs 3 and 4 are provided under the corresponding national requirements listed below;
(d) any exemptions granted in accordance with Title 3 are clearly indicated in the section provided for this purpose; and
(e) any ship specific requirements under national legislation are also referenced under the requirements concerned.

### 1. Minimum age. (Regulation 1.1)

Merchant Shipping (Maritime Labour) Regulations, 2021, Part II

d. The employment, engagement or work on board a ship of any person under the age of 16 is prohibited.
e. The employment, engagement or work of seafarers under the age of 18 is prohibited where the work is likely to jeopardize their health or safety.
f. The activities or work likely to jeopardize the health or safety of seafarers under the age of 18 are those set out in below as well as those that may be determined as likely to jeopardize their health or safety by the Administration after consultation with the shipowners' or seafarers' organizations, in accordance with relevant international standards.
g. Night work of seafarers under the age of 18 is prohibited. "
h. An exception regarding night work may be granted by the Administration in the following situations:

when the effective training of the seafarers concerned, in accordance with established programmes and schedules, would be impaired; or
When the specific nature of the duty or a recognized training programme requires that seafarers under the age of 18 perform duties at night and the Administration determines, after consultation with the shipowners' and seafarers' organizations, that the work will not be detrimental to their health or well-being.

No seafarer under the age of 18 shall be employed or engaged or work as a ship's cook

## 2. Medical certification. (Regulation 1.2)

Merchant Shipping (Maritime Labour) Regulations, 2021, Part II

1. Seafarers shall hold a valid medical certificate attesting that they are medically fit to perform the duties that they are to carry out at sea. The medical certificate must have been issued prior to commencing work on a ship.
2. A valid medical certificate issued to a seafarer in accordance with the requirements of the STCW Convention will be considered as meeting the requirements of regulation 1 above.
3. In prescribing the nature of the medical examination and certificate the Administration may, consult with the shipowners' and seafarers' organizations, and shall be guided by the ILO/WHO guidelines for Conducting Pre-sea and Periodic Medical Fitness Examinations for Seafarers, including any subsequent versions, and any other applicable international guidelines published by the International Labour Organization, the International Maritime Organization or the World Health Organization.

## 3. Training and Qualifications (Regulation 1.3)

Merchant Shipping (Maritime Labour) Regulations, 2021, Part II

1. Seafarers must be trained or certified as competent or otherwise qualified to perform their duties.
2. All seafarers must have successfully completed training for personal safety on board ship. Training and certification in accordance with the STCW Convention or other mandatory instruments adopted by the International Maritime Organization shall be considered as meeting the requirements in regulation 1

## 4. Seafarer's employment agreements. (Regulation 2.1)

Merchant Shipping (Maritime Labour) Regulations, 2021, Part II

1. Seafarers working on board a ship must have a clear written legally enforceable agreement, referred to in Section 125 of Merchant Shipping Act 2013 as a seafarers' employment agreement, which must be signed by both the seafarer and the shipowner or a representative of the shipowner or, where the seafarers are not employees, evidence of contractual or similar arrangements and must provide them with decent working and living conditions on board the ship as required by this Maritime Labour Regulations.

2. Seafarers must be given an opportunity to examine and seek advice on the seafarers' employment agreement before signing, as well as such other facilities as are necessary to ensure that they have freely entered into an agreement with a sufficient understanding of their rights and responsibilities. The shipowner and seafarer concerned must each have a signed original of the seafarers' employment agreement.

3. Shipowners must ensure that clear information as to the conditions of employment can be easily obtained on board by the seafarers concerned, including the ship's master, and that such information, including a copy of the seafarers' employment agreement, is also accessible for review by duly authorized officers of the Administration, including those in ports to be visited.

4. Seafarers' employment agreements shall be under-stood to incorporate any applicable collective bargaining agreements.

5. Where a collective bargaining agreement forms all or part of a seafarers' employment agreement, a copy of that agreement must be available on board. For a foreign flag ship where the language of the seafarers' employment agreement and any applicable collective bargaining agreement is not in English, the following must also be available in English

(a) a copy of a standard form of the agreement;
(b) the portions of the collective bargaining agreement that are subject to a port State inspection under the Convention
6. Seafarers' employment agreements shall in all cases contain the following particulars:

(a) the seafarer's full name, date of birth or age, and birthplace;
(b) the shipowner's name and address;
(c) the place where and date when the seafarers' employment agreement is entered into;

(d) the capacity in which the seafarer is to be employed;
(e) the amount of the seafarer's wages or the formula used for calculating them;
(f) the amount of paid annual leave or the formula used for calculating it;
(g) the termination of the agreement and the conditions thereof, including:
(i) if the agreement has been made for an indefinite period, the conditions entitling either party to terminate it, as well as the required notice period, which shall not be less for the shipowner than for the seafarer;
(ii) if the agreement has been made for a definite period, the date fixed for its expiry; and
(iii) if the agreement has been made for a voyage, the port of destination and the time which has to expire after arrival before the seafarer should be discharged;
(h) the health and social security protection benefits to be provided to the seafarer by the shipowner, including information on any mandatory social security contributions;
(i) the seafarer's entitlement to repatriation;
(j) a reference to the collective bargaining agreement, if applicable;
(k) any other particulars which the Administration may, after consultation with the shipowners' and seafarers' organizations, require to be included.

7. The minimum notice period to be given by the seafarers and shipowners for the early termination of a seafarers' employment agreement is no less than thirty days.

8. A notice period shorter than the minimum may be given by the seafarer, without penalty, for compassionate or urgent reasons or in other circumstances that are recognized under Section 192(2) of the Act as amended under or in applicable collective bargaining agreements as justifying termination of the employment agreement at shorter notice or without notice

9. Seafarers shall be given a certificate of discharge in accordance with section 132 of the Merchant Shipping Act 2013 as amended containing a record of their employment on board the ship.

## 5. Recruitment and placement (Regulation1.4).

Merchant Shipping (Maritime Labour) Regulations, 2021, Part II

All seafarers shall have access to an efficient, adequate and accountable system for finding employment on board ship without charge to the seafarer. Any public seafarer recruitment and placement service that may be operated in The Benin shall be operated in an orderly manner that protects and promotes seafarers' employment rights as provided in the Convention.

1. Any private seafarer recruitment and placement services operating in Benin whose primary purpose is the recruitment and placement of seafarers or which recruit and place a significant number of sea-farers shall be operated only in conformity with the Merchant Shipping Act 2013 and applicable subsidiary legislation. The Administration may establish, modify or change the system in consultation with the shipowners' and seafarers' organizations. In the event of doubt as to whether certain part of the Act or subsidiary legislation apply to a private recruitment and placement service, the question shall be determined by the Administration in consultation with the shipowners' and seafarers' organizations.
2. The Administration shall closely supervise and control all seafarer recruitment and placement services operating in the territory of Benin. Any licenses or certificates or similar authorizations for the operation of private services in the territory may be granted or renewed only after verification that the sea-farer recruitment and placement service concerned meets the requirements of the Administration.
3. The Administration shall ensure that adequate machinery and procedures exist for the investigation, if necessary, of complaints concerning the activities of seafarer recruitment and placement services, involving, as appropriate, representatives of shipowners and seafarers.
4. The Administration shall, in so far as practicable, advise Benin Seafarers on the possible problems of signing on a ship that flies the flag of a State which has not ratified the Convention, until it is satisfied that standards equivalent to those fixed by the Convention are being applied.
5. A shipowner that makes use of a service based in a country that has not ratified the Convention must provide information to the Administration regarding the regulation of the service to ensure that it is operated in conformity with the standards required oby Maritime Labour Convention 2006.
6. Private seafarer recruitment and placement services must be operated in accordance with the following requirements:

1. any means, mechanisms or lists intended to prevent or deter seafarers from gaining employment for which they are qualified are prohibited;

2. no fees or other charges for seafarer recruitment or placement or for providing employment to seafarers may be borne directly or indirectly, in whole or in part, by the seafarer, other than the cost of the seafarer obtaining a national statutory medical certificate, the national seafarer's book and a passport or other similar personal travel documents, not including, however, the cost of visas, which must be borne by the shipowner;
3. an up-to-date register of all seafarers recruited or placed through them, must be maintained and available for inspection by the Administration; in particular, the following information regarding any seafarer recruited must be maintained for inspection having due regard to the right to privacy and the need to protect confidentiality, the medical examinations, seafarers' identity documents and such other items as may be required for the seafarer to gain employment, full and complete records of the seafarers covered by their recruitment and placement system, which shall include but not be limited to;

(i) the seafarers' qualifications;
(ii) record of employment;
(iii) personal data relevant to employment; and
(iv) medical data relevant to employment

4. seafarers must be informed of their rights and duties under their employment agreements prior to or in the process of engagement and proper arrangements must be made for seafarers to examine their employment agreements before and after they are signed and for them to receive a copy of the agreements;
5. services must ensure that seafarers are advised of any particular conditions applicable to the job for which they are to be engaged and of the particular shipowner's policies relating to their employment;
6. seafarers recruited or placed must be qualified and hold the documents necessary for the job concerned, and the seafarers' employment agreements must be in accordance with Merchant Shipping Act 2013 and relevant regulations and any collective bargaining agreement that forms part of the employment agreement;

7. the services must have procedures:
(i) to ensure, as far as practicable, that all mandatory certificates and documents submitted for employment are up to date and have not been fraudulently obtained and that employment references are verified,
(ii) to verify that labour conditions on ships where seafarers are placed are in conformity with applicable collective bargaining agreements concluded between a shipowner and a representative seafarers' organization; and
(iii) to supply seafarers, as a matter of policy, only to shipowners that offer terms and conditions of employment to seafarers who comply with Merchant Shipping Act 2013 and relevant regulations or collective agreements with no less standards
(iv) the services must make sure as far as practicable that shipowners have the means to protect seafarers from being stranded in a foreign port;2. the services must maintain up-to-date lists of the ships for which they provide seafarers, ensuring that there is a means by which the service can be contacted in an emergency at all hours;
3. procedures must be in place to ensure that requests for information or advice by families of seafarers while the seafarers are at sea are dealt with promptly and sympathetically and at no cost;
4. the services must examine and respond to any complaint concerning their activities and advise the Administration of any unresolved complaint;
5. the services must have procedures which are in accordance with the principles of natural justice for dealing with cases of incompetence or indiscipline consistent with the Merchant Shipping Act and relevant subsidiary regulations and, where applicable, with collective agreements;
6. Shipowners or their representatives shall ensure that the terms of their employment agreements concluded with seafarers, includes a system of protection, by way of insurance or an equivalent appropriate measure, to compensate seafarers for monetary loss that they may incur as a result of the failure of a recruitment and placement service or the relevant shipowner under the seafarers' employment agreement to meet its obligations to them.

8. In the case of any public seafarer recruitment and placement service, the Administration shall consider:
(a) taking the necessary measures to promote effective cooperation among seafarer recruitment and placement services, whether public or private;
(b) the needs of the maritime industry at both the national and international levels, when developing training programmes for seafarers that form the part of the ship's crew that is responsible for the ship's safe navigation and pollution prevention operations, with the participation of shipowners, seafarers and the relevant training institutions;

(c) making suitable arrangements for the cooperation of representative shipowners' and seafarers' organizations in the organization and operation of the public seafarer recruitment and placement services, where they exist;
(d) determining, with due regard to the right to privacy and the need to protect confidentiality, the conditions under which seafarers' personal data may be processed by seafarer recruitment and placement services, including the collection, storage, combination and communication of such data to third parties;
(e) maintaining an arrangement for the collection and analysis of all relevant information on the maritime labour market, including the current and prospective supply of seafarers that work as crew classified by age, sex, rank and qualifications, and the industry's requirements, the collection of data on age or sex being admissible only for statistical purposes or if used in the framework of a programme to prevent discrimination based on age or sex;
(f) ensuring that the staff responsible for the supervision of public and private seafarer recruitment and placement services for ship's crew with responsibility for the ship's safe navigation and pollution prevention operations have had adequate training, including approved sea-service experience, and have relevant knowledge of the maritime industry, including the relevant maritime international instruments on training, certification and labour standards;
(g) prescribing operational standards and adopting codes of conduct and ethical practices for seafarer recruitment and placement services;
(h) exercising supervision of the licensing or certification system on] the basis of a system of quality standards.

## 6. Hours of work and hours of rest. (Regulation 2.3).

Merchant Shipping (Maritime Labour) Regulations, 2021, Part III

1. In accordance with these provisions, a maximum number of 14 hours of work and minimum number of 10 hours of rest shall be observed for seafarers.
2. The normal working hours' standard for seafarers, like that for other workers, is based on an eight-hour day with one day of rest per week and rest on public holidays. The Administration may authorize a collective agreement which determines seafarers' normal working hours on a basis no less favourable than the Para-graphs below.
3. The maximum hours of work shall be 14 hours in any 24-hour period and 72 hours in any seven-day period minimum hours of rest shall be ten hours in any 24-hour period and 77 hours in any seven-day period. Taking into account the dangers posed by the fatigue of seafarers, especially those whose duties involve navigational safety and the safe and secure operation of the ship, the Administration may, after consulting the shipowners' and seafarers' organizations, make appropriate reductions in the maximum hours of work increases to the minimum hours of rest.
4. Hours of rest may be divided into no more than two periods, one of which must be at least six hours in length, and the interval between consecutive periods of rest must not exceed 14 hours.
5. Musters, fire-fighting and lifeboat drills, and mandatory drills, must be conducted in a manner that minimizes the disturbance of rest periods and does not induce fatigue.
6. When a seafarer is on call, such as when a machinery space is unattended, the seafarer must have an adequate compensatory rest period if the normal period of rest is disturbed by call-outs to work.
7. If the Administration determines that the provisions in the agreement or award in respect of regulations 5 or 6 are inadequate, the Administration shall determine such provisions to ensure the seafarers concerned have sufficient rest.
8. A table with the shipboard working arrangements must be posted in an easily accessible place on-board the ship. The table must contain for every position at least:
(a) the schedule of service at sea and service in port; and
(b) The maximum of 14 hours of work and minimum of 10 hours of rest required under regulation 3 above or regulation 11 below.
9. This table must be in the form approved by the Administration and in English language
10. Shipowners must maintain records of seafarers' daily hours of work or of their daily hours of rest in accordance with the form approved by the Administration. Each seafarer shall receive a copy of the record pertaining to her or him which must be endorsed by the master, or a person authorized by the master, and by the seafarer.
11. The Administration may authorize or register collective agreements permitting exceptions to the limits set out. Any exceptions shall, as far as possible, follow the standards set out in these regulations but may take account of more frequent or longer leave periods or the granting of compensatory leave for watch keeping seafarers or seafarers working on board ships on short voyages.
12. Nothing in the preceding regulations above shall be deemed to impair the right of the master of a ship to require a seafarer, including a young seafarer, to perform any hours of work necessary for the

immediate safety of the ship, persons on board or cargo, or for the purpose of giving assistance to other ships or persons in distress at sea. The master may suspend the schedule of hours of work or hours of rest and require a seafarer to perform any hours of work necessary until the normal situation has been restored. As soon as practicable after the normal situation has been restored, the master must ensure that any seafarers who have performed work in a scheduled rest period are provided with an adequate period of rest.
13. Without prejudice1 to the general obligation on all seafarers to work during any emergency as provided for in paragraph 12 while at sea and in port the following provisions apply to all young seafarers under the age of 18:
(a) working hours must not exceed eight hours per day and 40 hours per week and overtime shall be worked only where unavoidable for safety reasons;
(b) sufficient time must be allowed for all meals, and a break of at least one hour for the main meal of the day shall be assured; and
(c) a 15minute rest period as soon as possible following each two hours of continuous work must be allowed.
Exceptionally the provisions in regulation 13 above need not be applied if:
(d) they are impracticable for young seafarers in the deck, engine room and catering departments assigned to watch keeping duties or working on a roistered shift-work system; or
(e) the effective training of young seafarers in accordance with established programs and schedules would be impaired.
14. Any exceptional situations under paragraph 14 must be recorded, with reasons, and signed by the master.

## 7. Manning levels (Regulation 2.7)

Merchant Shipping (Maritime Labour) Regulations, 2021, Part III

1. Ships must have a sufficient number of seafarers on board to ensure that they operated safely, efficiently and with due regard to security. Every ship shall be manned by a crew that is adequate, in terms of size and qualifications, to:
(a) ensure the safety and security of the ship and its personnel, under all operating conditions in accordance with a safe manning document issued or designated by the Administration, and
(b) Comply with the standards provided for in STCW Regulations 2014.
2. The Administration shall determine or approve or revise manning levels as appropriate taking into account the need to avoid or minimize excessive hours of work to ensure sufficient rest and to limit fatigue, the principles in applicable international instruments, especially those of the International Maritime Organization, on manning levels, and all the requirements concerning food and catering
3. Complaints concerning manning levels on a Benin ship shall be investigated by the Administration. The Administration shall ensure that or satisfy itself that there is maintained an efficient machinery for the investigation and settlement of such complaints and arrange for representatives of ship owners' and seafarers' organizations to participate, in the operation of such machinery.

## 8. Accommodation. (Regulation 3.1).

Merchant Shipping (Maritime Labour) Regulations, 2021, Part III

1. Ships must provide and maintain decent accommodations and recreational facilities for seafarers working or living on board, or both, consistent with promoting the seafarers' health and well-being.
2. Accommodation and recreational facilities shall with respect to the requirements of this Regulation which relate to ship construction and equipment, ships constructed before January 2019 when the Convention comes into force for Benin.
(a) the general requirement in regulation 1 above;
3. A ship shall be deemed to have been constructed on the date when its keel is laid or when it is at a similar stage of construction.
4. Ships must:
(a) meet the minimum standards for on-board accommodation and recreational facilities in these Regulation, including the provisions on health and safety protection and accident prevention, to ensure that any accommodation for seafarers, working or living on board, or both, is safe, decent in light of the specific needs of seafarers that both live and work on board ship.
(b) be inspected in accordance with the provisions in 5.1.4 below on inspection and enforcement and paragraph 5 below to ensure initial and ongoing compliance with those standards.
5. Frequent inspections must be carried out on board ships by, or under the authority of, the master, to ensure that seafarer accommodation is clean, decently habitable and maintained in a good state of repair. The results of each such inspection must be recorded and be available for review.

6. Where there is need to take account, without discrimination, of the interests of seafarers having differing and distinctive religious and social practices, the Administration may, after consultation with the shipowners' and seafarers' organizations, permit fairly applied variations in respect of the requirements of this Regulation on condition that such variations do not result in overall facilities less favourable than those which would result from the application of those requirements.
7. The Administration may, after consultation with the shipowners' and seafarers' organizations, exempt ships of less than 200 gross tonnage from certain requirements as specified below provided that all of the following conditions are met:
(a) the exemption must be expressly permitted below with respect to the requirement concerned;
(b) the exemption must be reasonable, taking account of the size of the ship and the number of persons on board;
(c) the exemption can be clearly justified on strong grounds due to particular circumstances; and
(d) The exemption is subject to the need to protect the seafarers' health and safety.
8. With respect to the general requirements for design and construction:
(a) there must be adequate headroom in all seafarer accommodation; the minimum permitted headroom where full and free movement is necessary shall be not less than 203 centimeters; the Administration may permit some limited reduction in headroom in any space, or part of any space, in such accommodation where it is satisfied that such reduction:
(i) is reasonable; and
(ii) will not result in discomfort to the seafarers;
(b) the accommodation shall be adequately insulated
(c) in ships other than passenger ships, as defined in Regulation 2(e) and (f) of the International Convention for the Safety of Life at Sea, 1974, as amended (the SOLAS Convention), sleeping rooms shall be situated above the load line amidships or aft, except that in exceptional cases, where the size, type or intended service of the ship renders any other location impracticable, sleeping rooms may be located in the fore part of the ship but in no case forward of the collision bulkhead;
(d) in passenger ships, and in special ships constructed in compliance with the IMO Code of Safety for Special Purpose Ships, 1983, and subsequent versions (hereinafter called "special purpose ships"), the Administration may, on condition that satisfactory arrangements are made for lighting and ventilation, permit the location of sleeping rooms below the load line, but in no case shall they be located immediately beneath working alleyways;
(e) there shall be no direct openings into sleeping rooms from cargo and machinery spaces or from galleys, storerooms, drying rooms or communal sanitary areas; that part of a bulkhead separating such places from sleeping rooms and external bulkheads shall be efficiently constructed of steel or other approved substance and be watertight and gas-tight;
(f) the materials used to construct internal bulkheads, paneling and sheeting, floors and joining must be suitable for the purpose and conducive to ensuring a healthy environment;
(g) external bulkheads of sleeping rooms and mess rooms must be adequately insulated; all machinery casings and all boundary bulkheads of galleys and other spaces in which heat is produced must be adequately insulated where there is a possibility of resulting heat effects in adjoining accommodation or passageways; measures must also be taken to provide protection from heat effects of steam or hot-water service pipes or both;
(h) sleeping rooms, mess rooms, recreation rooms and alleyways in the accommodation space must be adequately insulated to prevent condensation or overheating;
(i) the bulkhead surfaces and deck heads must be of material with a surface easily kept clean; no form of construction likely to harbour vermin shall be used; the bulkhead surfaces and deck heads in sleeping rooms and mess rooms must be capable of being easily kept clean and light in colour with a durable, nontoxic finish.
(j) the decks in all seafarer accommodation must be of material approved by the Administration and including construction and must provide a non-slip surface impervious to damp and easily kept clean where the floorings are made of composite materials, the joints with the sides must be profiled to avoid crevices;
(k) proper lighting and sufficient drainage must be provided; and
(l) accommodation and recreational and catering facilities must meet the requirements set out below in [Section 4.3], on health and safety protection and accident prevention, with respect to preventing the risk of exposure to hazardous levels of noise and vibration and other ambient factors and chemicals on board ships, and to provide an acceptable occupational and on-board living environment for seafarers. In particular:
(i) accommodation and recreational and catering facilities must be located as far as practicable from the engines, steering gear rooms, deck winches, ventilation, heating and air-conditioning equipment and other noisy machinery and apparatus;
(ii) acoustic insulation or other appropriate sound-absorbing materials must be used in the construction and finishing of bulkheads, deckheads and decks within the sound-producing spaces as well as self-closing noise-isolating doors for machinery spaces;
(iii) Engine rooms and other machinery spaces must be provided, wherever practicable, with soundproof centralized control rooms for engine-room personnel; working spaces, such as the machine shop, must be

insulated, as far as practicable, from the general engine-room noise and measures must be taken to reduce noise in the operation of machinery.
(iv) the limits for noise levels for working and living spaces must be in conformity with the ILO international guidelines on exposure levels, including those in the ILO code of practice entitled “Ambient factors in the workplace, 2001”, and, where applicable, the specific protection recommended by the International Maritime Organization, and with any subsequent amending and supplementary instruments for accept-able noise levels on board ships; a copy of the applicable instruments in English or the working language of the ship should be carried on board and should be accessible to seafarers;
(v) accommodation or recreational or catering facilities must not be exposed to excessive vibration;
(vi) Ships regularly trading to mosquito-infested ports must be fitted with appropriate devices.
9. With respect to requirements for ventilation and heating:
(a) sleeping rooms and mess rooms must be adequately ventilated; the system of ventilation for sleeping rooms and mess rooms must be controlled so as to maintain the air in a satisfactory condition and to ensure a sufficiency of air movement in all conditions of weather and climate;
(b) ships, except those regularly engaged in trade where temperate climatic conditions do not require this, must be equipped with air conditioning for seafarer accommodation, for any separate radio room and for any centralized machinery control room; in particular, air-conditioning systems, whether of a centralized or individual unit type, must be designed to:
(i) maintain the air at a satisfactory temperature and relative humidity as compared to outside air conditions, ensure a sufficiency of air changes in all air-conditioned spaces, take account of the particular characteristics of operations at sea and not produce excessive noises or vibrations; and
(ii) Facilitate easy cleaning and disinfection to prevent or control the spread of disease.
(c) all sanitary spaces must have ventilation to the open air, independently of any other part of the accommodation;
(d) adequate heat through an appropriate heating system must be provided, except in ships exclusively on voyages in tropical climates; furthermore:
(i) the system of heating the seafarer accommodation must be in operation at all times when seafarers are living or working on board and conditions require its use;
(ii) in all ships in which a heating system is required, the heating must be by means of hot water, warm air, electricity, steam or equivalent except that within the accommodation area, steam must not be used as a medium for heat transmission;
(iii) the heating system must be capable of maintaining the temperature in seafarer accommodation at [a satisfactory level under normal conditions of weather and climate likely to be met within the trade in which the ship is engaged
(iv) radiators and other heating apparatus must be placed and, where necessary, shielded so as to avoid risk of fire or danger or discomfort to the occupants; and
(v) power for the operation of the air conditioning and other aids to ventilation required by the preceding subparagraphs must be available at all times when seafarers are living or working on board and conditions so require; however, this power need not be provided from an emergency source
10. Ships of less than 200 gross tonnage may, subject to the conditions set out in regulation 7 above, be exempted from the requirement in regulation 9 (b).
11. With respect to requirements for lighting, subject to such special arrangements as may be permitted by the Administration for passenger ships, sleeping rooms and mess rooms must be lit by natural light and provided with adequate artificial light. In particular:
(a) electric light must be provided in seafarers accommodation;
(b) if there are not two independent sources of electricity for lighting, additional lighting must be provided by properly constructed lamps or lighting apparatus for emergency use;
(c) in seafarers’ sleeping rooms an electric reading lamp must be installed at the head of each berth;
(d) All seafarer accommodation must comply with the ILO standards of natural and artificial lighting.
12. When sleeping accommodation on board ships is required, the following requirements for sleeping rooms apply:
(a) in ships other than passenger ships, an individual sleeping room must be provided for each seafarer; in the case of ships of less than 3,000 gross tonnage or special purpose ships, exemptions from this requirement may be granted by the Administration where it finds its application impracticable
(b) Subject to the minimum floor area requirements set out below in regulation 13:
(i) on ships of less than 3,000 gross tonnage other than passenger ships and special purpose ships, sleeping rooms may be occupied by a maximum of two seafarers;
(ii) on passenger ships, sleeping rooms may be occupied by a maximum of four seafarers not carrying out the duties of ships’ officers; in the case of seafarers performing the duty of petty officers, there must be no more than two persons per sleeping room;
(iii) on special purpose ships sleeping rooms may accommodate more than four persons;
(c) separate sleeping rooms must be provided for men and for women;

(d) as far as practicable, sleeping rooms of seafarers must be so arranged that watches are separated and that no seafarers working during the day share a room with watch keepers;
(e) sleeping rooms must be of adequate size and properly equipped so as to ensure reasonable comfort and to facilitate tidiness; accordingly:
(i) where the size of the ship, the activity in which it is to be engaged and its layout make it reasonable and practicable, sleeping rooms must be planned and equipped with a private bathroom, including a toilet, so as to provide reasonable comfort for the occupants and to facilitate tidiness;
(ii) for each occupant, the furniture, which must be of smooth, hard material not liable to warp or corrode, must include a clothes locker of ample space (minimum 475 litres) and a drawer or equivalent space of not less than 56 litres; if the drawer is incorporated in the clothes locker then the combined mini-mum volume of the clothes locker must be 500 litres; it must be fitted with a shelf and be able to be locked by the occupant so as to ensure privacy;
(iii) each sleeping room must be provided with a table or desk, which may be of the fixed, drop-leaf or slide-out type, and with comfortable seating accommodation as necessary;
(iv) sleeping rooms must be fitted with curtains or equivalent for the side lights, as well as a mirror, small cabinets for toilet requisites, a book rack and a sufficient number of coat hooks;
(f) berths must meet the following standards:
(i) a separate berth for each seafarer must in all circumstances be provided;
(ii) the minimum inside dimensions of a berth must be at least 198 centimeters by 80 centimetres;
(iii) there must be adequate berth arrangements on board, making it as comfortable as possible for the sea-farer and any partner who may accompany the seafarer;
(iv) berths must not be arranged in tiers of more than two; in the case of berths placed along the ship's side, there must be only a single tier where a sidelight is situated above a berth;
(v) the lower berth in a double tier must be not less than 30 centimeters above the floor; the upper berth must be placed approximately midway between the bottom of the lower berth and the lower side of the deckhead beams;
(vi) the framework and the lee-board, if any, of a berth must be of approved material, hard, smooth, and not likely to corrode or to harbour vermin;
(vii) if tubular frames are used for the construction of berths, they must be completely sealed and without perforations which would give access to vermin;
(viii) Each berth must be fitted with a comfortable mattress with cushioning bottom or a combined cushioning mattress, including a spring bottom or a spring mattress; the mattress and cushioning material used must be made of approved material.
(ix) stuffing of material likely to harbour vermin must not be used;
(x) when one berth is placed over another, a dust-proof bottom must be fitted beneath the bottom mattress or spring bottom of the upper berth;
(xi) clean good quality bedding must be supplied by the shipowner to all seafarers for use on board during service on the ship, and such seafarers must be responsible for their return at times specified by the master and on completion of service in the ship.

13. Unless otherwise provided, sleeping rooms must have the minimum floor areas set out below. space occupied by berths and lockers, chests of drawers and seats must be included in the measurement of the floor area; small or irregularly shaped spaces which do not add effectively to the space available for free movement and cannot be used for installing furniture are to be excluded:
(a) in single berth seafarers' sleeping rooms the floor area must not be less than:
(i) 4.5 square metres in ships of less than 3,000 gross tonnage;
(ii) 5.5 square metres in ships of 3,000 gross tonnage or over but less than 10,000 gross tonnage;
(iii) 7 square metres in ships of 10,000 gross tonnage or over;
(b) in order to provide single berth sleeping rooms on ships of less than 3,000 gross tonnage, passenger ships and special purpose ships, the Administration may allow a reduced floor area;
(c) in ships of less than 3,000 gross tonnage other than passenger ships and special purpose ships, where sleeping rooms are occupied by two seafarers, the floor area of such sleeping rooms must not be less than 7 square metres;
(d) on passenger ships and special purpose ships the floor area of sleeping rooms for seafarers not performing the duties of ships' officers must not be less than:
(i) 7.5 square metres in rooms accommodating two persons;
(ii) 11.5 square metres in rooms accommodating three persons;
(iii) 14.5 square metres in rooms accommodating four persons;
(e) on special purpose ships sleeping rooms where more than four seafarers are accommodated, the floor area must not be less than 3.6 square metres per person;
(f) on ships other than passenger ships and special purpose ships, for seafarers who perform the duties of ships' officers where no private sitting room or day room is provided, the floor area per person must not be less than:

(i) 7.5 square metres in ships of less than 3,000 gross tonnage;
(ii) 8.5 square metres in ships of 3,000 gross tonnage or over but less than 10,000 gross tonnage;
(iii) 10 square metres in ships of 10,000 gross tonnage or over;
(g) on passenger ships and special purpose ships, the floor area for seafarers performing the duties of ships' officers where no private sitting room or day room is provided, the floor area per person for junior officers must not be less than 7.5 square metres and for senior officers not less than 8.5 square metres; junior officers are understood to be at the operational level, and senior officers at the management level;
(h) the master, the chief engineer and the chief navigating officer, and where practicable the second engineer officer, must have, in addition to their sleeping rooms, an adjoining sitting room, day room or equivalent additional space; ships of less than 3,000 gross tonnage may be exempted by the Administration from this requirement.

14. Ships of less than 200 gross tonnage may, subject to the conditions set out in paragraph 7 above, be exempted from the requirements in sub regulations (a) and (c) to of regulation 13 in so far as those subparagraphs relate to floor area.
15. Mess rooms must comply with the following standards:
(a) They must be located apart from the sleeping rooms and as close as practicable to the galley; ships of less than 3,000 gross tonnage may be exempted by the Administration;
(b) they must be of adequate size and comfort and properly furnished and equipped (including ongoing facilities for refreshment), taking account of the number of seafarers likely to use them at any one time;
(c) provision must be made for separate or common mess room facilities as appropriate: the decision in this respect must be taken after consultation with seafarers' and shipowners' representatives and subject to the approval of the Administration; account should be taken of factors such as the size of the ship and the distinctive cultural, religious and social needs of the seafarers;
(d) where separate mess room facilities are to be provided to seafarers, then separate mess rooms must be provided for the master and officers and for petty officers and other seafarers;
(e) on ships other than passenger ships, the floor area of mess rooms for seafarers must be not less than 1.5 square meters per person of the planned seating capacity;
(f) in all ships, mess rooms must be equipped with tables and appropriate seats, fixed or movable, sufficient to accommodate the greatest number of seafarers likely to use them at any one time;
(g) the tops of tables and seats must be of damp-resistant material;
(h) there must be available at all times when seafarers are on board:
(i) a refrigerator, which must be conveniently situated and of sufficient capacity for the number of persons using the mess room or mess rooms;
(ii) facilities for hot beverages and cool water;
(iii) where available pantries are not accessible to mess rooms, adequate lockers for mess utensils and proper facilities for washing utensils must be provided;
(iv) Mess utensils, including plates, cups and other mess utensils, of approved material which can be easily cleaned, must be supplied by the shipowner to all seafarers for use on board during service on the ship, and such seafarers must be responsible for their return at times specified by the master and on completion of service in the ship.

16. With respect to requirements for sanitary facilities:
(a) all seafarers must have convenient access on the ship to sanitary facilities meeting minimum standards of health and hygiene and reasonable standards of comfort, with separate sanitary facilities being provided for men and for women;
(b) there must be sanitary facilities within easy access of the navigating bridge and the machinery space or near the engine room control center; ships of less than 3,000 gross tonnage may be exempted by the Administration from this requirement.;
(c) in all ships a minimum of one toilet, one wash basin and one tub or shower or both for every six persons or less who do not have personal facilities must be provided at a convenient location;
(d) with the exception of passenger ships, each sleeping room must be provided with a washbasin having hot and cold running fresh water, except where such a washbasin is situated in the private bathroom provided; ships of less than 200 gross tonnage may, subject to the conditions set out in paragraph 7 above, be exempted by the Administration from this requirement;
(e) where separate facilities for engine department personnel to change their clothes are provided, they must be located outside the machinery space but with easy access to it; and must be fitted with individual clothes lockers as well as with tubs or showers or both and washbasins having hot and cold running fresh water;
(f) in passenger ships normally engaged on voyages of not more than four hours' duration, the Administration may approve special arrangements or a reduction in the number of facilities required;
(g) hot and cold running fresh water must be available in all wash places;

(h) washbasins and tub baths must be of adequate size and constructed of approved material with a smooth surface not liable to crack, flake or corrode;
(i) all toilets must be of an approved pattern and provided with an ample flush of water or with some other suitable flushing means, such as air, which are available at all times and independently controllable;
(j) sanitary accommodation intended for the use of more than one person must comply with the following:
(i) floors must be of approved durable material, impervious to damp, and must be properly drained;
(ii) bulkheads must be of steel or other approved material and must be watertight up to at least 23 centimetres above the level of the deck;
(iii) the accommodation must be sufficiently lit, heated and ventilated;
(iv) toilets must be situated convenient to, but separate from, sleeping rooms and wash rooms, without direct access from the sleeping rooms or from a passage between sleeping rooms and toilets to which there is no other access; this requirement does not apply where a toilet is located in a compartment between two sleeping rooms having a total of not more than four seafarers;
(v) where there is more than one toilet in a compartment, they must be sufficiently screened to ensure privacy;
(vi) towels, soap and toilet paper for all seafarers must be provided by the shipowner.
17. Ships carrying 15 or more seafarers and engaged in a voyage of more than three days' duration must provide separate hospital accommodation to be used exclusively for medical purposes and complying with the following requirements:
(a) hospital accommodation must, in all weathers, be easy of access, provide comfortable housing for the occupants and be conducive to their receiving prompt and proper attention; in particular:
(i) it must be designed so as to facilitate consultation and the giving of medical first aid and to help prevent the spread of infectious diseases;
(ii) the arrangement of the entrance, berths, lighting, ventilation, heating and water supply must be designed to ensure the comfort and facilitate the treatment of the occupants;
(iii) the number of hospital berths required will be prescribed by the Administration;
(b) Sanitary accommodation must be provided for the exclusive use of the occupants of the hospital accommodation, either as part of the accommodation or in close proximity thereto; such sanitary accommodation must comprise a minimum of one toilet, one washbasin and one tub or shower.

18. Appropriately situated and furnished laundry facilities must be available. The laundry facilities must include:
(a) washing machines;
(b) drying machines or adequately heated and ventilated drying rooms; and
(c) irons and ironing boards or their equivalent
19. Ships of less than 200 gross tonnage may, subject to the conditions set out in regulation 7 above, are exempted from the requirement in regulation 18.

## 9. On-board recreational facilities. (Regulation 3.1)

Merchant Shipping (Maritime Labour) Regulations, 2021, Part III

Appropriate seafarers' recreational facilities, amenities and services, as adapted to meet the special needs of seafarers who must live and work on ships, must be provided on board for the benefit of all seafarers, taking into account the provisions on health and safety protection and accident prevention. Recreational facilities and services must be reviewed frequently to ensure that they are appropriate in the light of changes in the needs of seafarers resulting from technical, operational and other developments in the shipping industry In particular, ships must:

(a) have a space or spaces on open deck to which the seafarers can have access when off duty, which are of adequate area having regard to the size of the ship and the number of seafarers on board;
(b) Be provided with separate offices or a common ship's office for use by deck and engine departments; ships of less than 3,000 gross tonnage may be exempted by the Administration from this requirement.
(c) provide furnishings for recreational facilities that as a minimum include a bookcase and facilities for reading, writing and, where practicable, games, and where appropriate, a canteen;
(d) include the following facilities at no cost to the seafarer, where practicable:
(i) television viewing and the reception of radio broadcasts;
(ii) showing of films, the stock of which must be adequate for the duration of the voyage and, where necessary, changed at reasonable intervals;
(iii) sports equipment including exercise equipment, table games and deck games;
(iv) facilities for swimming;

(v) a library containing vocational and other books, the stock of which must be adequate for the duration of the voyage and changed at reasonable intervals;
(vi) facilities for recreational handicrafts;
(vii) electronic equipment such as a radio, television, video recorders, DVD/CD player, personal computer and software and cassette recorder/player;
(viii) reasonable access to ship-to-shore telephone communications, and email and Internet facilities, where available, with any charges for the use of these services being reasonable in amount;
(e) ensure that the forwarding of seafarers' mail is as reliable and expeditious as possible; efforts should also be considered for avoiding seafarers being required to pay additional postage when mail has to be readdressed owing to circumstances beyond their control;

(f) whenever possible and reasonable, expeditiously grant seafarers permission to have their partners, relatives and friends as visitors on board their ship when in port; such measures must meet any concerns for security clearances;
(g) Allow seafarers to be accompanied by their partners on occasional voyages where this is practicable and reasonable; such partners must carry adequate insurance cover against accident and illness; the shipowners must give every assistance to the seafarer to effect such insurance.

**10. Food and catering (Regulations 3.2)**

Merchant Shipping (Maritime Labour) Regulations, 2021, Part III

1. Ships must, in accordance with paragraphs 2 and 3 below, carry on board and serve food and drinking water that is of appropriate quality, nutritional value and quantity and adequately covers the requirements of the ship.
2. Seafarers on board a ship must be provided with food free of charge during the period of engagement.
3. The following minimum standards for food and catering apply:
(a) food and drinking water supplies, having regard to the number of seafarers on board, their religious requirements and cultural practices as they pertain to food, and the duration and nature of the voyage, must be suitable in respect of quantity, nutritional value, quality and variety;
(b) the organization and equipment of the catering department must be such as to permit the provision to the seafarers of adequate, varied and nutritious meals prepared and served in hygienic conditions;
(c) Catering staff must be properly trained or instructed for their positions in accordance with Ship's Cook Regulations 2014 as amended, and any seafarers engaged as ships' cooks must have completed a training course approved or recognized by the Administration, which covers practical cookery, food and personal hygiene, food storage, stock control, and environmental protection and catering health and safety.

4. Seafarers shall only be qualified as ships' cooks if they:
(a) have served at sea for a minimum period of two months in any capacity and shall be 18years and above.,
(b) have passed an examination prescribed by the Administration or passed an equivalent examination at a training course approved by the Administration for cooks or hold a certificate of qualification as ships' cook issued by countries which have ratified the Maritime Labour Convention, 2006,
5. On ships operating with a prescribed manning of 12 or less which, by virtue of the size of the crew or the trading pattern, may not be required to carry a fully qualified cook, anyone processing food in the galley must be trained or instructed in areas including food and personal hygiene as well as handling and storage of food on board ship.

6. In circumstances of exceptional necessity, the Administration may issue a dispensation permitting a non-fully qualified cook to serve in a specified ship in accordance with Section 172 (2) of the Act 2013 as amended.
7. Frequent documented inspections must be carried out on board ships, by or under the authority of the master, with respect to:
(a) supplies of food and drinking water;
(b) all spaces and equipment used for the storage and handling of food and drinking water;
(c) Galley and other equipment for the preparation and service of meals.

8. The Administration shall:
(a) in cooperation with other relevant agencies and organizations, collect up-to-date information on nutrition and on methods of purchasing, storing, preserving, cooking and serving food, with special reference to the requirements of catering on board a ship; this information shall be made available, free of charge or at reasonable cost, to manufacturers of and traders in ships' food supplies and equipment, masters, stewards

and cooks, and to shipowners and seafarers organizations concerned; appropriate forms of publicity, such as manuals, brochures, posters, charts or advertisements in trade journals should be used for this purpose;
(b) issue recommendations to avoid wastage of food, facilitate the maintenance of a proper standard of hygiene, and ensure the maximum practicable convenience in working arrangements;
(c) work with relevant agencies and organizations to develop educational materials and on-board information concerning methods of ensuring proper food supply and catering services;
(d) work in close cooperation with the shipowners and seafarers organizations and with other national or local authorities dealing with questions of food and health; it may where necessary utilize the services of such authorities.

### 11. Health and safety and accident prevention. (Regulation 4.3)

Merchant Shipping (Maritime Labour) Regulations, 2021, Part III
1. Seafarers must be provided with occupational health protection consistent with their right to live, work and train on board ship in a safe and hygienic environment.
2. The standards for occupational safety and health protection and accident prevention to be observed on-board Benin registered ships shall be in accordance with Schedule II
3. Notwithstanding the provisions set out in schedule II above, The Administration shall adopt and keep under continuous review guidelines for the management of seafarer occupational safety and health on board taking into consideration relevant national policies and international guidelines.
4. The review mentioned in paragraph 3 above shall take into consideration the relevant ILO Guidelines and code of practice and in particular, prioritize the following matters:
(a) structural features of the ship, including means of access and asbestos-related risks;
(b) machinery;
(c) the effects of the extremely low or high temperature of any surfaces with which seafarers may be in contact;
(d) the effects of noise in the workplace and in shipboard accommodation;
(e) the effects of vibration in the workplace and in shipboard accommodation;
(f) the effects of ambient factors, other than those referred to in subparagraphs (d) and (e), in the workplace and in shipboard accommodation, including tobacco smoke;
(g) special safety measures on and below deck;
(h) loading and unloading equipment;
(i) fire prevention and fire-fighting;
(j) anchors, chains and lines;
(k) dangerous cargo and ballast;
(l) personal protective equipment for seafarers;
(m) work in enclosed spaces;
(n) physical and mental effects of fatigue;
(o) the effects of drug and alcohol dependency;
(p) HIV/AIDS protection and prevention; and
(q) emergency and accident response.

5. The assessment of risks and reduction of exposure on the matters referred to in paragraph 4 above shall take account of the physical occupational health effects, including manual handling of loads, noise and vibration, the chemical and biological occupational health effects, the mental occupational health effects, the physical and mental health effects of fatigue, and occupational accidents. The necessary measures shall take due account of the preventive principle according to which, among other things, combating risk at the source, adapting work to the individual, especially as regards the design of workplaces, and replacing the dangerous by the non-dangerous or the less dangerous, have precedence over personal protective equipment for seafarers.

6. In addition, the Administration shall ensure that the implications for health and safety are taken into account, particularly in the following areas:
(a) emergency and accident response;
(b) the effects of drug and alcohol dependency; and
(c) HIV/AIDS protection and prevention.

7. Notwithstanding the provisions set out in paragraph 2 above, compliance with the requirements of applicable international instruments on the acceptable levels of exposure to workplace hazards on board ships and on the development and implementation of ships' occupational safety and health policies and programmes will be considered as meeting the requirements

8. Shipowners must adopt and promote on-board occupational safety and health management policies and programmes, consistent with the guidelines referred to in paragraph 3 above, that:

(a) include reasonable precautions to prevent occupational accidents, injuries and diseases on board ship, including measures to reduce and prevent the risk of exposure to harmful levels of ambient factors and chemicals as well as the risk of injury or disease that may arise from the use of equipment and machinery on board ships;
(b) include training and instruction of seafarers and other on-board programmes for the prevention of occupational accidents, injuries and diseases and for continuous improvement in occupational safety and health protection, that involve seafarers' representatives and all other persons concerned in their implementation, taking account of preventive measures, including engineering and design control, substitution of processes and procedures for collective and individual tasks, and the use of personal protective equipment;
(c) require the inspection, reporting and correcting of unsafe conditions and provide for the investigation and reporting of on-board occupational accidents and occupational injuries in accordance with Casualty investigation Code as amended.
(d) provide special attention to the safety and health of seafarers under the age of 18
(e) specify the duties of the master or a person designated by the master, or both, to take specific responsibility for the implementation of and compliance with the ship's occupational safety and health policy and programme;
(f) specify the authority of the ship's seafarers appointed or elected as safety representatives to participate in meetings of the ship's safety committee; such a committee must be established on board a ship on which there are five or more seafarers.
(g) include risk evaluation in relation to management of occupational safety and health that refer to appropriate statistical information from their ships and from general statistics provided by the competent authority.

9. Young seafarers referred to under paragraph 8(d) who are employed on ships registered in Benin, shall not engage in the following tasks, without appropriate supervision and instruction, except where they are recognized as fully qualified in a pertinent skill by the Administration:
(a) the lifting, moving or carrying of heavy loads or objects;
(b) entry into boilers, tanks and cofferdams;
(c) operating hoisting and other power machinery and tools,;
(d) handling mooring or tow lines or anchoring equipment;
(e) rigging;
(f) servicing of electrical equipment;
(g) the cleaning of catering machinery; and the handling or taking charge of ships boats

## 12. Medical care on board ship and ashore (Regulation 4.1)

Merchant Shipping (Maritime Labour) Regulations, 2021, Part III

1. All seafarers working on board a ship must be covered by adequate measures for the protection of their health and must have access to prompt and adequate medical care that is as comparable as possible to that which is generally available to workers ashore in Benin.
2. The protection and care under paragraph1 must, in principle, be provided at no cost to the seafarers.
3. Shipowners must adopt measures to provide for health protection and medical care, including essential dental care, for seafarers working on board. These measures must:
(a) ensure the application to seafarers of any general provisions on occupational health protection and medical care relevant to their duties, as well as of special provisions specific to work on board ship;
(b) ensure that seafarers are given health protection and medical care as comparable as possible to that which is generally available to workers ashore, including prompt access to the necessary medicines, medical equipment and facilities for diagnosis and treatment and to medical information and expertise;(c) give seafarers the right to visit a qualified medical doctor or dentist without delay in ports of call, where practicable;

(d) ensure that, to the extent consistent with national law and practice, medical care and health protection services while a seafarer is on board ship or landed in a foreign port are provided free of charge to seafarers; and
(e) not be limited to treatment of sick or injured seafarers but include measures of a preventive character such as health promotion and health education programmes.
4. A standard medical report form, adopted by the Administration, in order to facilitate the exchange of medical and related information concerning individual seafarers between ship and shore in cases of illness or injury, must be used by ships' masters and relevant onshore and on-board medical personnel. When

completed, the form and its contents must be kept confidential and must only be used to facilitate the treatment of seafarers.

5. The following minimum requirements for on-board hospital and medical care facilities and equipment and training on ships apply:

(a) all ships must carry a medicine chest, medical equipment and a medical guide, the specifics of which shall be prescribed and subject to regular inspection by the Administration, taking into account the type of ship, the number of persons on board and the nature, destination and duration of voyages and relevant national and international recommended medical standards. :

(i) the medicine chest and its contents, as well as the medical equipment carried on board in accordance with Section 7 of Medicines, Medical Stores and Medical Appliances Regulations 2014 (as amended), and must be properly maintained and inspected at intervals, not exceeding 12 months, by responsible persons designated by the Administration , who must ensure that the labelling, expiry dates and conditions of storage of all medicines and directions for their use are checked and all equipment functioning as required;

(ii) The carriage requirements for medical guides on ships shall be in accordance with Section 9 of same regulations mentioned.

(b) ships carrying 100 or more persons and ordinarily engaged on international voyages of more than three days' duration must carry a qualified medical doctor who is responsible for providing medical care; the Administration may require that other ships carry a medical doctor, taking into account, inter alia, such factors as the duration, nature and conditions of the voyage and the number of seafarers on board;

(c) ships which do not carry a medical doctor must have either at least one seafarer on board who is in charge of medical care and administering medicine as part of their regular duties or at least one seafarer on board competent to provide medical first aid; persons in charge of medical care on board who are not medical doctors must have satisfactorily completed training in medical care that meets the requirements of the STCW Convention; seafarers designated to provide medical first aid must have satisfactorily completed training in medical first aid that meets the requirements of the STCW Convention as amended:

(i) ships which ordinarily are capable of reaching qualified medical care and medical facilities within eight hours must have at least one designated seafarer with the approved medical first-aid training required by the STCW Regulations 2014 as amended which will enable such persons to take immediate, effective action in case of accidents or illnesses likely to occur on board a ship and to make use of medical advice by radio or satellite communication; and

(ii) all other ships must have at least one designated seafarer with approved training in medical care required by the STCW Convention as amended, including practical training and training in life-saving techniques such as intravenous therapy, which will enable the persons concerned to participate effectively in coordinated schemes for medical assistance to ships at sea, and to provide the sick or injured with a satisfactory standard of medical care during the period they are likely to remain on board;

(d) the medical training referred to in subparagraph (c) above must be based on the contents of the most recent editions of the medical guides referred to in Section 9 of Medicines, Medical Stores, and Medical Regulations 2014

(e) persons referred to in subparagraph (c)(i) and (ii) above and such other seafarers as may be required by the Administration must undergo, at approximately five-year intervals, refresher courses to enable them to maintain and increase their knowledge and skills and to keep up-to-date with new developments;

(f) Two licensed Government medical personnel will be available 24 hours a day for medical advice through radio or satellite communication to all ships at sea which would include specialist advice and shall be free of charged irrespective of the flag they fly.

(i) all ships must carry a complete and up-to-date list of radio stations through which medical advice can be obtained and, if equipped with a system of satellite communication, carry an up-to-date and complete list of coast earth stations through which medical advice can be obtained;

(ii) seafarers with responsibility for medical care or medical first aid on board must be instructed in the use of the ship's medical guide and the medical section of the most recent edition of the International Code of Signals so as to enable them to understand the type of information needed by the advising doctor as well as the advice received.

6. Seafarers on board foreign ships in the territory of Benin who are in need of immediate medical care shall be given access to medical facilities on shore including:

(a) outpatient treatment for sickness and injury;

(b) hospitalization when necessary;

(c) facilities for dental treatment, especially in cases of emergency.

Suitable measures shall be taken to facilitate the treatment of seafarers suffering from disease. In particular, seafarers shall be promptly admitted to clinics and hospitals ashore, without difficulty and irrespective of nationality or religious belief, and, whenever possible, arrangements shall be made to ensure, when necessary, continuation of treatment to supplement the medical facilities available to them

**13. On-board complaint procedure. (Regulation 5.1.5)**

1. Ships must have an approved on-board complaint procedures for the fair, effective, well-documented and expeditious handling of seafarer complaints alleging breaches of the requirements of this Regulation.
2. Any adverse action taken by any person with respect to a seafarer for lodging a complaint, which is not manifestly vexatious or maliciously made, is considered victimization and is prohibited.
3. Shipowners must provide all seafarers working on a ship with a copy of the approved on-board complaint procedures applicable on the ship.
4. On-board complaint procedures that are approved by the Administration must:
(a) seek to resolve complaints at the lowest level possible; however, in all cases, seafarers must have a right to complain directly to the master and, where they consider it necessary, to appropriate external authorities;
(b) include the right of the seafarer to be accompanied or represented during the complaints procedure, as well as safeguards against the possibility of victimization of seafarers for filing complaints; in order to help avoid problems of victimization of seafarers making complaints, the procedures should encourage the nomination of a person on board who can advise seafarers on the procedures available to them and, if requested by the complainant seafarer, also attend any meetings or hearings into the subject matter of the complaint;
(c) include contact information of the Administration and, where different, the competent authority in the seafarers' country of residence, as well as the name of a person or persons on board the ship who can, on a confidential basis, provide seafarers with impartial advice on their complaint and otherwise assist them in following the complaint procedures available to them on board the ship.
5. On-board compliant procedures to be used on ships registered in Benin shall be in accordance with schedule xx Subject to any relevant provisions of an applicable collective agreement, the competent authority shall, in close consultation with the shipowners and seafarers organizations, develop a model for fair, expeditious and well-documented on-board complaint-handling procedures; the following procedures must, at a minimum, be among those discussed during this consultative process:
(a) complaints should be addressed to the head of the department of the seafarer lodging the complaint or to the seafarer's superior officer;
(b) the head of department or superior officer must then attempt to resolve the matter within prescribed time limits appropriate to the seriousness of the issues involved;
(c) if the head of department or superior officer cannot resolve the complaint to the satisfaction of the seafarer, the latter may refer it to the master, who must handle the matter personally;
(d) seafarers must at all times have the right to be accompanied and to be represented by another seafarer of their choice on board the ship concerned;
(e) all complaints and the decisions on them must be recorded and a copy provided to the seafarer concerned;
(f) if a complaint cannot be resolved on board, the matter must be referred ashore to the shipowner, who must be given an appropriate time limit for resolving the matter, where appropriate, in consultation with the seafarers concerned or any person they may appoint as their representative; and
(g) in all cases seafarers must have a right to file their complaints directly with the master and the shipowner and competent authorities.
6. Any act of victimization by any person as defined in paragraph 2 is subject to a penalty of fifty thousand dalasis.
7. The paragraphs set out above are without prejudice to a seafarer's right to seek redress through whatever legal means available in Benin the seafarer considers appropriate.

### 14. Wages. (Regulation 2.2)

Merchant Shipping (Maritime Labour) Regulations, 2021, Part III

1. Seafarers must be paid at no greater than monthly intervals and in accordance with their seafarers' employment agreement and any applicable collective agreement.
2. Seafarers must be given a monthly account of the payments due and the amounts paid, including wages, additional payments and the rate of exchange used where payment has been made in a currency or at a rate different from the one agreed to.
3. Shipowners must establish a system for enabling seafarers, at the time of their entering employment or during it, to allot, if they so desire, a proportion of their wages for remittance at regular intervals to their families by bank transfers or similar means. Allotments must be remitted in due time and directly to the person or persons nominated by the seafarers.
4. Any charge for the service under regulation 3 above shall be reasonable in amount, and the rate of currency exchange, unless otherwise provided, shall be at the prevailing market rate or the official published

rate and not unfavourable to the seafarer and shall comply with any other relevant requirements that may be established by law.
5. Any legal provisions in force at the time of the adoption of this Regulation which relate to the amount of the wages to be paid and to the principles governing their calculation shall continue to apply to the extent that they are applicable to seafarers.
6. Minimum wages shall be determined by the Administration in consultation with Shipowners, Seafarer Organizations and Recruitment agencies taking into consideration any relevant existing regulations and guidelines of International Labour Organisation.

### 15. Repatriation (Regulation 2.5)

Merchant Shipping (Maritime Labour) Regulations, 2021, Part III

1. Seafarers have a right to be repatriated at no cost to themselves in the following circumstances:
(a) if the seafarers' employment agreement expires while they are abroad; or
(b) upon the expiry of the period of notice given in accordance with the provisions of the seafarers' employment agreement, when the seafarers' employment agreement is terminated:
(i) by the shipowner; or
(ii) by the seafarer for justified reasons;
(c) when the seafarer is no longer able to carry out his or her duties under the employment agreement or cannot be expected to carry them out in the specific circumstances;
(d) in any event after serving a period of 12 months on board.

2. The following are deemed to be circumstances covered by paragraph 1(b) and (c) above:
(a) illness or injury or other medical condition which requires the seafarer's repatriation when found medically fit to travel;
(b) shipwreck;
(c) the shipowner not being able to continue to fulfill their legal or contractual obligations as an employer of the seafarers by reason of insolvency, sale of ship, change of ship's registration or any other similar reason;
(d) the ship being bound for a war zone to which the seafarer does not consent to go; and
(e) Termination or interruption of employment in accordance with an industrial award or collective agreement, or termination of employment for any other similar reason.

3. Shipowners are prohibited from requiring that seafarers make an advance payment towards the cost of repatriation at the beginning of their employment, and also from recovering the cost of repatriation from the seafarers' wages or other entitlements except where the seafarer has been found, in accordance with national laws or regulations or other measures or applicable collective bargaining agreements, to be in serious default of the seafarer's employment obligations.

4. All ships that fly the flag of Benin must provide the Administration with evidence of financial security to ensure that seafarers are duly repatriated.

5. Shipowners are responsible, as a minimum, for the following costs and seafarer's repatriation entitlements:
(a) passage to the destination selected for repatriation in accordance with paragraph below;
(b) accommodation and food from the moment the seafarers leave the ship until they reach the repatriation destination;
(c) pay and allowances from the moment the seafarers leave the ship until they reach the repatriation destination;
(d) transportation of 40 kg of the seafarers' personal luggage to the repatriation destination; and
(e) medical treatment when necessary until the seafarers are medically fit to travel to the repatriation destination.

6. If, after young seafarers under the age of 18 have served on a ship that flies the flag of Benin for at least four months during their first foreign-going voyage, it becomes apparent that they are unsuited to life at sea, they must be given the opportunity of being repatriated at no expense to themselves from the first suitable port of call in which there are consular services of Benin or the State of nationality or residence of the young seafarer. Notification of any such repatriation, with the reasons therefore, shall be given to the Registrar who issued the papers enabling the young seafarers concerned to take up seagoing employment.

7. The Shipowner's duty to cover the costs of repatriation continues until the seafarers concerned are landed at a destination as required under paragraph 8 below

8. Shipowners are responsible for repatriation arrangements by appropriate and expeditious means. The normal mode of transport is by air. Seafarers have the right to be repatriated, at their choice to one of the following destinations with which the seafarers have a substantial connection:
(a) the place at which the seafarer agreed to enter into the engagement;
(b) the place stipulated by collective agreement;
(c) the seafarer's country of residence; or
(d) such other place as may be mutually agreed at the time of engagement.

9. The entitlement to repatriation may lapse if the seafarers concerned do not claim it within two years from the date when the seafarers were repatriated or a reasonable period of time determined by an applicable collective agreement.

10. The provisions in this Regulation are without prejudice to any right of the shipowner to recover the cost of repatriation under third-party contractual arrangements.

11. If a shipowner fails to make arrangements for or to meet the cost of repatriation of seafarers:
(a) the Administration will arrange for repatriation of the seafarers concerned;
(b) costs incurred in repatriating seafarers shall be recoverable from the shipowner concerned;
(c) the expenses of repatriation shall in no case be a charge upon the seafarers, except as provided above in paragraph 3;
(d) the ship or other ships of the shipowner concerned may be detained by the Administration until the reimbursement has been made.

12. A copy of the present provisions regarding repatriation written in English Language must be carried on board a ship that flies the flag of Benin and must be available to seafarers

Every possible practical assistance shall be given to a seafarer stranded in a foreign port pending repatriation and in the event of delay in the repatriation of the seafarer. Where foreign seafarers are stranded in a port in Benin, the Administration shall ensure that the consular or local representative of the flag State and the seafarer's State of nationality or State of residence, as appropriate, are informed immediately

### 16. Shipowners' liability (Regulation 4.2)

Merchant Shipping (Maritime Labour) Regulations, 2021, Part III

1. Seafarers working on board a ship have a right to material assistance and support from the shipowner with respect to the financial consequences of sickness, injury or death occurring while they are serving under a seafarers' employment agreement or arising from their employment under such agreement.
2. The right under regulation 1 above does not affect any other legal remedies that a seafarer may seek.
3. Shipowners must provide financial security to assure compensation in the event of the death or long-term disability of seafarers due to an occupational injury, illness or hazard, as set out in Schedule I of this Regulation or in the seafarers' employment agreement or any applicable collective agreement;
4. Shipowners are responsible for health protection and medical care of all seafarers working on board and are liable for the costs for all seafarers working on their ships in respect of sickness and injury of the seafarers occurring between the date of commencing duty and the date upon which they are deemed duly repatriated, or arising from their employment between those dates to the extent provided below:
(a) shipowners must defray the expense of medical care, including medical treatment and the supply of the necessary medicines and therapeutic appliances, and board and lodging away from home until the sick or injured seafarer has recovered, or until the sickness or incapacity has been declared of a permanent character;
(b) shipowners must pay the cost of burial expenses in the case of death occurring on board or ashore during the period of engagement; these expenses may be reimbursed by an insurance institution in cases in which funeral benefit is payable in respect of the deceased seafarer under laws or regulations relating to social insurance or workers' compensation;
(c) where the sickness or injury results in incapacity for work, shipowners must:
(i) pay full wages including bonuses where the seafarer is duly entitled as long as the sick or injured seafarers remain on board or until the seafarers have been repatriated in accordance with Regulations 2.5
(ii) pay wages in whole or in part in accordance with Sub-part I of the Act as amended on Wages and Emoluments or as provided for in collective agreements from the time when the seafarers are repatriated or landed until their recovery or if earlier, until they are entitled to cash benefits under the social security legislation.
5. The liability of the shipowner under paragraph 4(a) is limited to 16 weeks from the day of the injury or the commencement of the sickness and shall cease from the time at which the seafarer can claim medical

benefits under a scheme of compulsory sickness insurance, compulsory accident insurance or workers' compensation for accidents

6. The liability of the shipowner to pay wages in whole or in part in respect of a seafarer no longer on board is limited to 16weeks from the day of the injury or the commencement of the sickness and shall cease from the time at which the seafarer can claim medical benefits under a scheme of compulsory sickness insurance, compulsory accident insurance or workers' compensation for accidents

7. Shipowners are not liable in respect of:

(a) injury incurred otherwise than in the service of the ship; injury or sickness due to the wilful misconduct of the sick, injured or deceased seafarer;

(b) sickness or infirmity intentionally concealed when the engagement is entered into.

Shipowners or their representatives must take measures for safeguarding property left on board by sick, injured or deceased seafarers and for returning it to them or to their next of kin.

Place: COTONOU

Date: OCTOBER 08, 2025

ANTONIS DEMETRIOU
.....
DEPUTY REGISTRAR
BENIN MARITIME ADMINISTRATION

(Seal or Stamp of the authority as appropriate)

## Substantial Equivalencies

1. The following substantial equivalencies as provided under Article VI, paragraphs 3 and 4 of the Convention, except where stated above, are noted

.....

2. No equivalency has been granted.

Name: ……

Title: ……

Signature: .....

Place: ……

Date: .....

(Seal or Stamp of the authority as appropriate)

## Exemptions

1. The following exemptions have been as provided in Title 3 of the Convention are noted.

.....

.....

2. No exemption has been granted.

Name: ……

Title: ……

Signature: .....

Place: ……

Date: .....

(Seal or Stamp of the authority as appropriate)